

STATE OF NEW YORK

5785--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 20, 2025

Introduced by M. of A. BUTTENSCHON, STERN, RAGA -- read once and referred to the Committee on Governmental Operations -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

CONCURRENT RESOLUTION OF THE SENATE AND ASSEMBLY

proposing an amendment to section 1 of article 4 of the constitution, in relation to term limits for the office of governor and lieutenant-governor

Section 1. Resolved (if the Senate concur), That section 1 of article 4 of the constitution be amended to read as follows:

Section 1. (a) The executive power shall be vested in the governor, who shall hold office for four years; the lieutenant-governor shall be chosen at the same time, and for the same term. The governor and lieutenant-governor shall be chosen at the general election held in the year nineteen hundred thirty-eight, and each fourth year thereafter. They shall be chosen jointly, by the casting by each voter of a single vote applicable to both offices, and the legislature by law shall provide for making such choice in such manner. The respective persons having the highest number of votes cast jointly for them for governor and lieutenant-governor respectively shall be elected.

(b) No person shall be elected to the office of the governor more than three times. Provided, however, any term already served by a sitting governor prior to the amendments to this section being approved and ratified by the people and coming into effect shall be excluded from the limits on service set forth by this section. Provided, further, that a person who has been thrice elected to the office of governor and who is in the line of succession to such office, pursuant to section six of this article, shall be passed over in the line of succession and the next person in the line of succession shall act as governor.

(c) No person shall be elected to the office of the lieutenant-governor more than three times. Provided, however, any term already served by a sitting lieutenant-governor prior to the amendments to this section

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 being approved and ratified by the people and coming into effect shall
2 be excluded from the limits on service set forth by this section.
3 Provided, further, that a person who has been thrice elected to the
4 office of lieutenant-governor and who is in the line of succession to
5 such office, pursuant to section six of this article, shall be passed
6 over in the line of succession and the next person in the line of
7 succession shall act as lieutenant-governor.

8 § 2. Resolved (if the Senate concur), That the foregoing be referred
9 to the first regular legislative session convening after the next
10 succeeding general election of members of the assembly, and, in conform-
11 ity with section 1 of article 19 of the constitution, be published for 3
12 months previous to the time of such election.